

23STLC05564 23STLC05564

County: los-angeles

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Case Number: 23STLC05564 Hearing Date: August 24, 2026 Dept: 617

Dept.

617

Date:

8-24-26

Case

#: 23STLC05564

Trial

Date: 5-24-27

SUMMARY JUDGMENT

MOVING

PARTY: Defendants, Nikou Zarabian, D.D.S. and Nikou Zarabian DDS, Inc.

RESPONDING

PARTY: Unopposed/Plaintiff, Reah Sybirski

RELIEF

REQUESTED

Motion

for Summary Judgment

SUMMARY

OF ACTION

Plaintiff

Reah Sybirski, in pro per, was referred to Defendant Nikou Zarabian, D.D.S. after experiencing dental problems. Plaintiff alleges that Dr. Zarabian informed her that she could replace crowns on 3 of Plaintiff's molars. On January 24, 2023, Dr. Zarabian drilled Plaintiff's molars. Plaintiff experienced "immense pain and soreness" following the procedure, but Dr. Zarabian informed her that these symptoms were normal. Plaintiff alleges that her pain persisted and became more intense weeks later.

Plaintiff

again saw Dr. Zarabian on January 31, 2023 to adjust crowns on molars Nos. 2 and 31. During the appointment, Plaintiff expressed that she was in immense pain and suffered from sensitivity and throbbing near the site of the molars. When Plaintiff attended her cleaning on April 27, 2023 she again informed Dr. Zarabian of the ongoing pain. Plaintiff alleges that Dr. Zarabian did not give any recommendations regarding her symptoms and declined additional treatments. Plaintiff claims that after this visit, other dentists identified an infection and swelling near the sites of the molars.

Plaintiff

underwent subsequent infection treatments by another dentist, but still experiences immense pain in molars Nos. 2, 4, and 31. She alleges she suffered injury to her facial nerves, unnecessary loss of healthy teeth, degradation of healthy supporting bone, and the improper design and placement of dentures, "necessitating total replacement of prosthetic appliances and other reconstructive and restorative treatments." On July 9, 2024, Plaintiff filed a First Amended Complaint against Dr. Zarabian and Defendant Nikou Zarabian DDS, Inc. for dental malpractice.

RULING: Granted.

Defendants move for summary

judgment arguing that Plaintiff's claim fails as a matter of law because they met the standard of care in their treatment of Plaintiff and did not cause or contribute to her injuries. Plaintiff does not oppose the motion. The Court notes that the notice and motion were electronically served on Plaintiff despite her apparent lack of consent to electronic service for this case as an unrepresented party. (Code Civ. Proc., § 1010.6.) Nonetheless, Plaintiff previously moved ex parte to continue the instant motion, which was granted by

the Court. It thus appears Plaintiff had notice of the motion and absent a showing that she was unaware of the hearing date, the Court considers the motion properly served. Because Defendants establish that no triable issue exists as to whether they met the requisite standard of care, their motion is granted.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382-83; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and 'uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Ibid.*)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; see also Code

Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

Defendants

argue that no triable issue exists as to the elements of breach of duty and causation. They contend that their treatment of Plaintiff was within the standard of care and they did not cause Plaintiff’s injuries.

“Where,

as here, the material issues framed by the complaint are whether the conduct of a medical professional fell below the standard of care and proximately caused the plaintiff’s injury, expert testimony is required to establish the reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by members of the medical profession under similar circumstances [citation], as well as whether the defendant’s conduct proximately caused the plaintiff’s injuries within a reasonable medical probability.” (Zaragoza v. Adam (2025) 109 Cal.App.5th 113, 118-19.)

Defendants

have satisfied their burden. They present an expert declaration from Daniel C. Freeman, D.D.S., a general dentist licensed to practice dentistry in California since 1984. [Freeman Decl. ¶ 3.] Based on his education, training, and experience, Dr. Freeman is “familiar with the standard of care required for general dentists practicing in the communities within Southern California.” [Id. ¶ 4.] He also has “extensive experience with restoration of teeth and evaluating a patient’s complaints and recommending necessary treatment based on those complaints and my evaluation of the patient.” [Ibid.] Based on Dr. Freeman’s review of medical records, he concludes that Defendants’ care and treatment of Plaintiff was within the standard of care. [Id. ¶ 7.] He states that Defendants appropriately formulated a treatment plan for Plaintiff’s “failing bridges” at teeth Nos. 3 to 5 and 29 to 31, including placing crowns on teeth Nos. 3, 5, and 31.[1] [Ibid.] He further explains that the crown design and placement fell within the standard of care. [Ibid.] Temporary crowns were properly placed with permanent crowns placed after no signs of infection. [Ibid.] He also states that all of Plaintiff’s symptoms and concerns were “properly followed and monitored.” [Ibid.] Dr. Freeman’s conclusion, based on his

experience and review of the pertinent medical records, that Defendants' treatment fell within the standard of care is sufficient to shift the burden to Plaintiff. (Bushling v. Fremont Medical Center (2004) 117 Cal.App.4th 493, 509.)

Plaintiff

submits no opposition to the motion and thus no triable issue of material fact is raised as to whether Defendants conformed with the standard of care.

Defendants have therefore shown that Plaintiff cannot establish the essential element of breach of duty and their motion for summary judgment is granted.

Defendants

to give notice.

[1] Though

Plaintiff's complaint indicates the crowns were placed on teeth Nos. 2, 4, and 31, it appears they were placed on Nos. 3, 5, and 31.